

U.O.Note No.2670/SC.E3/98-1, Genl.Admn. (SC.E) Dept., dt.02.12.1998 regarding Vigilance Commission's advice in departmental inquiries.

Subject Heading : Vigilance Commission - stage of advice in departmental inquiries

- Ref :
1. G.O.Ms.No.421, G.A. (SC.D) Dept., dt.03.08.1993.
 2. Procedural Instructions of APVC communicated through Lr.No.66/ VC.A2/93-3, APVC, dt.10.10.1994.
 3. From the VC, APVC, Hyd., D.O.Lr.No.1883/VC.F1/98-1, dt.17.11.1998 addressed to the CS to Government.

The attention of all Departments of Secretariat is invited to the orders issued in the G.O. first cited defining the scheme, jurisdiction and powers of the Vigilance Commission and also to the reference second cited, wherein, the procedural instructions of the A.P.Vigilance Commission were communicated by the Vigilance Commission. As per the said instructions, the advice of the Vigilance Commission shall be obtained after the conclusion of the departmental inquiry regarding the findings on the delinquency and the penalty to be imposed on the charged officer, both before arriving at the provisional conclusion and after receiving the representation of the delinquent officer.

2. But, it has been brought to the notice of the Government by the A.P.Vigilance Commission that the above instructions are not being followed in many cases by the Government Departments.
3. All Departments of Secretariat are therefore once again requested to obtain the advice of the Vigilance Commissioner without fail after conclusion of the departmental inquiries i.e. after receipt of the report of the Inquiring Authority and the representation of the Government Servant / MOS thereon. Thereafter, considering the advice of the Vigilance Commissioner vis-a-vis the findings of the Inquiring Authority and the representation of the Government Servant / MOS thereon, the Government department should obtain the orders of the concerned competent authority either for imposition of any of the penalties as stipulated under the relevant disciplinary rules or otherwise.
4. The Departments of Secretariat are also requested to communicate the above instructions to all the subordinate offices and Undertakings under their administrative control for their guidance and compliance.